

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
BARBARA A. SOBAL,

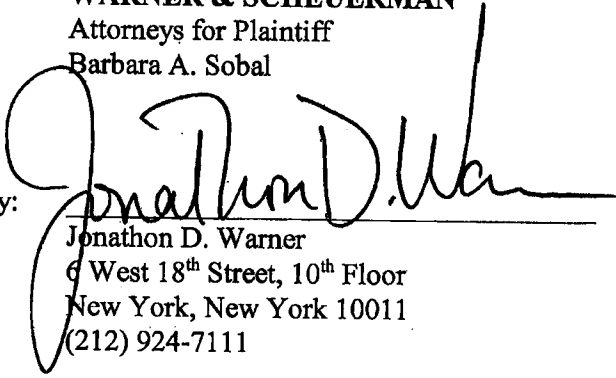
Plaintiff,

-against-

BRIAN KING, 300 EAST 64TH STREET
PARTNERS LLC, JORDAN COOPER LLC, and
JORDAN COOPER & ASSOCIATES, INC.,Defendants.
-----XIndex No.
Date FiledSUMMONSPlaintiff designates
New York County as
the place of trialBasis of Venue:
Plaintiff's Residence
300 East 64th Street
New York, New York

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 14, 2013WARNER & SCHEUERMAN
Attorneys for Plaintiff
Barbara A. SobalBy: Jonathon D. Warner
6 West 18th Street, 10th Floor
New York, New York 10011
(212) 924-7111

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
BARBARA A. SOBAL,

Plaintiff,

-against-

VERIFIED COMPLAINT

Index No.

BRIAN KING, 300 EAST 64TH STREET
PARTNERS LLC, JORDAN COOPER LLC, and
JORDAN COOPER & ASSOCIATES, INC.,

Defendants.
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Plaintiff Barbara A. Sobal, by her attorneys Warner & Scheuerman, for her Verified
Complaint, alleges as follows:

THE PARTIES

1. Upon information and belief, at all relevant times, plaintiff Barbara A. Sobal ("Sobal") was and still is a resident of the County of New York, State of New York.
2. Upon information and belief, at all relevant times, defendant 300 East 64th Street Partners LLC ("300 East 64th") was and still is a New York limited liability company with an office located in the County of New York, State of New York.
3. Upon information and belief, at all relevant times, defendant Jordan Cooper LLC ("JCLLC") was and still is a New York limited liability company with an office located in the County of New York, State of New York.
4. Upon information and belief, at all relevant times, defendant Jordan Cooper & Associates, Inc. ("JCAI") was and still is a New York corporation with an office located in the County of New York, State of New York.

5. Upon information and belief, at all relevant times, defendant 300 East 64th Street was and still is the owner of a certain building located at 300 East 64th Street, New York, New York (the "Building").

6. At all relevant times, plaintiff Sobal was a tenant at the Building, residing at apartment number 17A.

7. Upon information and belief, at all relevant times, defendant JCLLC was the property manager at the Building.

8. Upon information and belief, at all relevant times, defendant JCAI was the property manager at the Building.

9. Upon information and belief, at all relevant times, defendant Brian King ("King") was employed as a superintendent at the Building.

10. Upon information and belief, at all relevant times, defendant King was an employee and/or special employee of defendant 300 East 64th Street, acting within the course and scope of his employment.

11. Upon information and belief, at all relevant times, defendant King was an employee and/or special employee of defendant JCLLC, acting within the course and scope of his employment.

12. Upon information and belief, at all relevant times, defendant King was an employee and/or special employee of defendant JCAI, acting within the course and scope of his employment.

FOR A FIRST CAUSE OF ACTION
(Malicious Prosecution)

13. Sobal repeats every allegation in paragraphs "1" through "12."

14. On January 16, 2012, at approximately 10:25 A.M., defendant King wrongfully, falsely and maliciously accused Sobal to the New York City Police Department of having struck King about the right ear with her open hand, of causing a phone which King was holding to his right ear to strike King's right ear, and of causing King to suffer substantial pain, swelling and redness about his ear.

15. As a result of the of false information provided by defendant King to the New York City Police Department in bad faith, Sobal was arrested by the New York City Police Department and charged with Assault in the Third Degree pursuant to Penal Law § 120.00(1); Assault in the Third Degree pursuant to Penal Law 120.00(2); Attempted Assault in the Third Degree pursuant to Penal Law § 110/120.00(1); and Harassment in the Second Degree pursuant to Penal Law § 240.26(1).

16. As further result of the false information provided by defendant King in bad faith to the New York City Police Department, Sobal was handcuffed, transported to the police station, detained against her will, unlawfully imprisoned, and subjected to an Order of Protection.

17. During the arrest and detainment initiated in bad faith by defendant King and as a consequence thereof, Sobal was assaulted and battered by certain members of the New York City Police Department, who contacted Sobal's body in an offensive manner, causing Sobal to sustain severe and devastating personal injuries.

18. Upon information and belief, Sobal's false arrest and unlawful imprisonment were intentionally and maliciously caused by defendants King, 300 East 64th, JCLLC, and JCAI, their agents and/or employees, without justification, and in bad faith.

19. Sobal was wholly innocent of all criminal charges, and Sobal was forced to submit to the aforesaid arrest and imprisonment, and the indignities and humiliation attendant thereto, entirely against her will.

20. On July 23, 2012, all criminal charges against Sobal were dismissed.

21. As a result of the malicious prosecution initiated by defendants King, 300 East 64th, JCLLC, and JCAI, their agents and/or employees, Sobal suffered serious injuries to various parts of her body; suffered, and will continue to suffer, great pain and anguish in body and mind; was rendered sick, sore, lame and disabled; lost time and sustained injuries to her character, reputation and health; sustained out of pocket expenses defending the false criminal charges, including attorneys' fees and investigator fees; necessarily received medical care and treatment in connection with the injuries sustained by her, for which expenses have been and will continue to be incurred; was incapacitated and will continue to be incapacitated; and her injuries are permanent, protracted and disabling in nature.

22. Upon information and belief, the conduct of defendants King, 300 East 64th, JCLLC, and JCAI, their agents and/or employees, in falsely accusing Sobal of committing criminal acts which she did not commit and in otherwise causing Sobal to be wrongfully arrested without cause and justification, is gross, wanton and deliberate, and demonstrates a high degree of moral culpability.

23. By reason of the foregoing, Sobal is entitled to money damages from defendants King, 300 East 64th, JCLLC, and JCAI, jointly and severally, in an amount in excess of the jurisdictional limits of all lower Courts, together with punitive damages.

SECOND CAUSE OF ACTION
(Negligence)

24. Sobal repeats every allegation in paragraphs "1" through "21."

25. Upon information and belief, defendants 300 East 64th, JCLLC and JCAI were careless and reckless in hiring, supervising, training and retaining King as and for their employee and/or special employee as superintendent at the Building.

26. Upon information and belief, defendants 300 East 64th, JCLLC and JCAI were careless and reckless in hiring, supervising, training and retaining King as and for their employee and/or special employee as superintendent at the Building in that King lacked the experience, deportment, maturity and ability to serve as superintendent at the Building and in that defendants 300 East 64th, JCLLC, and JCAI, their agents and/or employees: (a) failed to exercise due care and caution in their hiring practices, particularly in their hiring of King as superintendent; (b) failed to investigate the background of personnel they hired to serve as superintendent at the Building, including King; (c) knew of the lack of ability, experience, deportment and maturity of King, but hired and retained him as superintendent at the Building; (d) failed to exercise the proper degree of control over the conduct of its employees and/or agents at the Building, including King; (e) failed to provide the necessary degree of supervision, care and control over their employees at the Building, including King; and (f) were otherwise careless and reckless.

27. Upon information and belief, as a result of the negligent hiring, supervision, training and retention by defendants 300 East 64th, JCLLC and JCAI, Sobal was falsely accused of committing criminal acts which she did not commit and was unlawfully arrested and detained.

28. By reason of the negligence of defendants 300 East 64th, JCLLC and JCAI, their agents and/or employees, Sobal suffered serious injuries to various parts of her body; suffered, and will continue to suffer, great pain and anguish in body and mind; was rendered sick, sore, lame and disabled; lost time and sustained injuries to her character, reputation and health; sustained out of pocket expenses defending the false criminal charges, including attorneys' fees and investigator fees; necessarily received medical care and treatment in connection with the injuries sustained by her, for which expenses have been and will continue to be incurred; was incapacitated and will continue to be incapacitated; and her injuries are permanent, protracted and disabling in nature.

29. By reason of the foregoing, Sobal is entitled to money damages from defendants 300 East 64th, JCLLC and JCAI, jointly and severally, in an amount in excess of the jurisdictional limits of all lower Courts.

THIRD CAUSE OF ACTION
(Intentional Infliction Of Emotional Distress)

30. Sobal repeat every allegation in paragraphs "1" through "22."

31. Upon information and belief, defendants King, 300 East 64th, JCLLC, and JCAI, intentionally, wilfully and with the purpose of causing extreme emotional distress, caused Sobal to be arrested by the New York City Police Department without cause or justification, by falsely accusing Sobal of having struck King about the right ear with her open hand, of causing a

phone which King was holding to his right ear to strike king's right ear and of causing King to suffer substantial pain, swelling and redness about his ear.

32. Upon information and belief, the conduct of defendants King, 300 East 64th, JCLLC, and JCAI in intentionally, wilfully and recklessly accusing Sobal of committing criminal acts which they knew she had not committed; in causing Sobal to be arrested and detained against her will, without cause and/or justification; and in causing criminal charges and an Order of Protection be to issued against Sobal, without cause and/or justification, was so shocking and outrageous as to exceed all reasonable bounds of decency.

33. As a result of defendants' intentional and outrageous conduct, Sobal sustained severe emotional and psychological distress and anxiety; suffered and continues to suffer from mental anguish and trauma; lost the enjoyment of life; has been unable to attend to her normal vocations and avocations; and otherwise sustained severe and devastating emotional and psychological injuries which are permanent, protracted and disabling in nature.

34. Upon information and belief, the shocking and outrageous conduct of defendants King, 300 East 64th, JCLLC, and JCAI, their agents and/or employees, in falsely accusing Sobal of committing criminal acts which she did not commit and in otherwise causing Sobal to be wrongfully arrested without cause and justification, is gross, wanton and deliberate, and demonstrates a high degree of moral culpability.

35. As a result of defendants' intentional infliction of emotional distress, Sobal is entitled to damages from defendants King, 300 East 64th, JCLLC, and JCAI, jointly and severally, in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction of this case.

WHEREFORE, plaintiff Barbara A. Sobal demands judgment as follows:

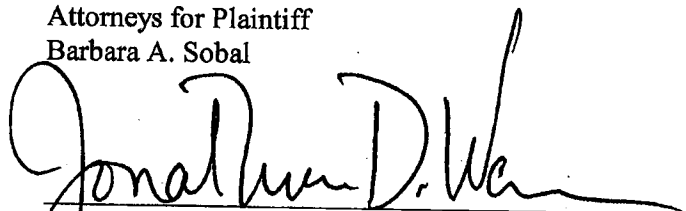
- a. On the first cause of action, against defendants Brian King, 300 East 64th Street Partners LLC, Jordan Cooper LLC, and Jordan Cooper & Associates, Inc., jointly and severally, in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction of this case, together with punitive damages;
- b. On the second cause of action, against defendants 300 East 64th Street Partners LLC, Jordan Cooper LLC, and Jordan Cooper & Associates, Inc., jointly and severally, in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction of this case;
- c. On the third cause of action, against defendants Brian King, 300 East 64th Street Partners LLC, Jordan Cooper LLC, and Jordan Cooper & Associates, Inc., jointly and severally, in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction of this case, together with punitive damages; and
- d. For the costs and disbursements incurred in the prosecution of this action.

WARNER & SCHEUERMAN

Attorneys for Plaintiff

Barbara A. Sobal

By:


Jonathon D. Warner

6 West 18th Street, 10th Floor

New York, New York 10011

(212) 924-7111

INDIVIDUAL VERIFICATION

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SS.:

BARBARA A. SOBAL, being duly sworn, deposes and says:

I am the plaintiff in the within action, and I have read the foregoing Complaint, and know the contents thereof to be true to my own knowledge, except as to matters alleged upon information and belief, and as to those matters, I believe them to be true.

~~BARBARA A. SOBAL~~

Sworn to before me this
14th day of January, 2013

NOTARY PUBLIC

